with the Court's previous order, the Court orders production forthwith. As for issue/evidentiary sanctions, that issue is premature at this point.

The Court denies the request for monetary sanctions without prejudice as Defendant brought a confusing motion as to discovery/contempt.

Denied.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2405394	SANCHEZ VS FORD MOTOR COMPANY	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Moving party: Defendants Ford Motor Company and Palm Springs Motors Inc. (sued as Palm Springs Ford)
Responding party: Plaintiff Zorina Sanchez

This is a lemon law case. On 2/14/20, Plaintiff Zorina Sanchez ("Plaintiff") purchased a used, certified pre-owned ("CPO") 2019 Ford Escape manufactured by Defendant Ford Motor Company ("Defendant") and sold by Palm Springs Motors, Inc. (sued as Palm Springs Ford). The vehicle had about 27,601 miles. The complaint alleges a 3/23/20 transaction date, but the sales contract and Plaintiff's deposition identify 2/14/20. Plaintiff acknowledged that the Vehicle was used and testified that she was told it came with a "used car warranty." (UF no. 3.)

The terms of the CPO Warranty have not been described in detail; but Plaintiff alleges that she entered into a "warranty contract" with Defendant and that the contract included "the bumper-bumper warranty, powertrain warranty, [and] emission warranty." (Compl., ¶¶ 7-8.)

The complaint, filed 8/30/24, asserts: (1) Civ. Code §1793.2(d); (2) Civ. Code §1793.2(b); (3) Civ. Code §1793.2(a)(3); (4) breach of implied warranty of merchantability; and (5) negligent repair (against Palm Springs Ford).

Defendants now move for summary judgment or, alternatively, summary adjudication of 9 issues. Issues nos. 1 through 4 contend that, because the vehicle was purchased used, Plaintiff's Song-Beverly claims fail under *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189. Issues nos. 5 through 8 assert additional defects in the 2nd, 3rd, and 4th causes of action; namely, that no repair exceeded 30 days, that Plaintiff lacks evidence that Defendant failed to provide sufficient parts, and that the implied warranty claim is time barred and unsupported by evidence of breach or damages. Issue no. 9 argues that the negligent-repair claim is barred by the economic loss rule.

Plaintiff opposes, arguing that triable issues exist concerning the CPO warranty issued, the scope and administration of warranty repairs, timely commencement/completion of repairs, provision of repair materials and parts, delayed discovery/tolling, and damage caused by the Dealer's negligent work independent of the vehicle's original defects.

In reply, Defendants argue that Plaintiff produced no evidence of a new car warranty, delayed repairs, inadequate literature or replacement parts, applicable tolling, or non-economic-loss damages. Defendants also assert for the first time that the Vehicle previously belonged to a rental fleet at the time of the first purchase, and so it never had the protections under the Act.

Analysis

"A defendant moving for summary judgment has the burden of showing that a cause of action lacks merit because one or more elements of the cause of action cannot be established or there is a complete defense to that cause of action." (*Jones v. Wachovia Bank* (2014) 230 Cal.App.4th 935, 945; Code Civ. Proc., §437c(p)(2).) When the defendant moves for summary judgment on the ground that one or more element of the "cause of action … cannot be established," the defendant must present evidence that, if uncontradicted, "would constitute a preponderance of evidence that an essential element of the plaintiff's case cannot be established …." (*Kids' Universe v. In2Labs* (2002) 95 Cal.App.4th 870, 879; Code Civ. Proc., §437c(p)(2).) Once the defendant meets this burden, "the burden shifts to plaintiff to present evidence showing there is a triable issue of material fact" as to that essential element of the case or the defense asserted. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780-781; *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.) The pleadings thus "frame the issues on a motion for summary adjudication and a party cannot successfully resist such a motion based on allegations that are not contained in the complaint." (*Heritage Marketing & Ins. Services, Inc. v. Chrustawka* (2008) 160 Cal.App.4th 754, 764.) A motion for summary adjudication "shall proceed in all procedural respects as a motion for summary judgment" (Code Civ. Proc., §437c(f)(2).)

Defendants describe *Crescencio v. Ford Motor Co.* (C.D.Cal. 2025) 811 F.Supp.3d 1132 as "controlling." Here, however, it is not controlling on a California superior court. It may be considered persuasive authority concerning application of *Rodriguez* to a CPO warranty.

The reply also asserts that the Vehicle previously belonged to a rental fleet. That assertion appears for the first time in reply and does not appear in Defendant's previously filed separate statement. It will not be considered as an independent basis for adjudication.

Defendants raise 23 objections to Plaintiff's declaration on grounds for hearsay, relevance, lack of expert testimony, and lack of foundation.

The court sustains objections nos. 1 and 8 only insofar as Plaintiff references an unidentified dealership employee's representation. However, the court overrules these objections to the extent that those statements are offered to show Plaintiff's understanding or reliance. The court overrules objections nos. 2 and 3 as she may testify concerning her reliance and what she would have done in different situations. The court also overrules nos. 4, 6, 9, 10, 12, 14, 17, 20, and 21 as Plaintiff may testify to the facts as to when she presented or returned her vehicle, and matters she personally experienced. The court sustains nos. 15, 16, 18, 19, and 22 only as to technical knowledge or legal conclusions. As to the remaining objections regarding recall, technical diagnosis, or warranty determination, the records themselves may separately establish those facts.

First Cause of Action (Civ. Code §1793.2(d)): The Song-Beverly Act applies to more than cars; it establishes consumer warranty protections for all sorts of consumer goods. (Civ. Code §1791(a).) The various remedies provided by the Act, however, are at times restricted by the type of good. Pertinent to the first issue in this motion, subdivision (d)(2) of section 1793.2, which provides a refund-or-replace remedy, is applicable only when "the manufacturer is 'unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts.'" (*Rodriguez*, 17 Cal.5th 189, 195.)

Section 1793.22 is the Tanner Consumer Protection Act, and subdivision (e)(2) defines a "new motor vehicle" as:

> a new motor vehicle that is bought or used primarily for personal, family, or household purposes. "New motor vehicle" also means a new motor vehicle with a gross vehicle weight under 10,000 pounds that is bought or used primarily for business purposes by a person, including a partnership, limited liability company, corporation, association, or any other legal entity, to which not more than five motor vehicles are registered in this state. "New motor vehicle" includes the chassis, chassis cab, and that portion of a motor home devoted to its propulsion, but does not include any portion designed, used, or maintained primarily for human habitation, a dealer-owned vehicle and a "demonstrator" or other motor vehicle sold with a manufacturer's new car warranty but does not include a motorcycle or a motor vehicle which is not registered under the Vehicle Code because it is to be operated or used exclusively off the highways. A demonstrator is a vehicle assigned by a dealer for the purpose of demonstrating qualities and characteristics common to vehicles of the same or similar model and type.

Interpretation of this definition has been the subject of several published cases, beginning with *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112. In *Jensen* the plaintiff leased a used vehicle with an already-existing warranty that was issued when the car was new. The court concluded that it was a "new vehicle." Going through the language of section 1793.22(e)(2), the court identified the different types of "new motor vehicles" in the statute beyond the basic definition in the first two sentences of this paragraph. Four of the additional types of "new motor vehicles" in the third sentence of this paragraph were clear: the chassis, chassis cab, portion of motor home devoted to propulsion, and a dealer-owned vehicle. The parties disagreed on whether the remaining language in this sentence ("a 'demonstrator' or other motor vehicle sold with a manufacturer's new car warranty") was one or two additional types of vehicles.

The court sided with the plaintiff that they were two, making for six additional categories in this sentence: the four listed, demonstrators, and “other motor vehicles sold with a manufacturer’s new car warranty.” The *Jensen* court reasoned: “The use of the word ‘or’ in the statute indicates ‘demonstrator’ and ‘other motor vehicle’ are intended as alternative or separate categories of ‘new motor vehicle’ if they are ‘sold with a manufacturer’s new car warranty.’” (*Jensen*, 35 Cal.App.4th 112, 123 [disapproved of by *Rodriguez*, 17 Cal.5th 189 as discussed below].)

Kiluk v. Mercedes-Benz USC, LLC (2019) 43 Cal.App.5th 334 came next. While the *Kiluk* court expressed some “reservations about that holding” in *Jensen* (that a used car sold during the period of a transferrable new vehicle warranty was a “new motor vehicle”), it avoided engaging with the question of whether “*Jensen* was correctly decided because, even if the vehicle was not a ‘new motor vehicle’ under Song-Beverly Act, Mercedes Benz was still liable under the used goods provisions of section 1795.5.” (*Kiluk*, 43 Cal.App.5th 334, 339-340.) In addition to finding the plaintiff was entitled to remedies under section 1795.5, *Kiluk* found additional section 1793.2 remedies only because the manufacturer there had sold directly to the plaintiffs and was a retailer as well. “Here, Mercedes Benz partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff. By partnering with the dealership, Mercedes Benz stepped into the role of a retailer and was subject to the obligations of a retailer under section 1795.5. That section provides that a retailer’s obligations are the ‘same’ as a manufacturer under section 1793.2. Accordingly, it was entirely proper to permit the jury to analyze Mercedes Benz’s liability under section 1793.2.” (*Kiluk*, 43 Cal.App.5th 334, 340.) That is to say, the question of whether the vehicle in *Kiluk* was new or had a “new car warranty” was irrelevant because the manufacturer was also the seller and had liability that way under section 1793.2.

Rodriguez ultimately rejected the holding in *Jensen* that the unexpired existing new car warranty made the vehicle a “new motor vehicle.” “[I]f the Legislature had intended to define ‘new motor vehicle’ to include a potentially vast category of used cars with unexpired new car warranties, it would have been done so more clearly and explicitly…. [Citations.] [¶] Indeed, although demonstrators and dealer-owned vehicles are not truly ‘new,’ the statutory definition of ‘new motor vehicle’ makes an exception for them along with ‘other motor vehicle[s] sold with a manufacturer's new car warranty’ [Citation], and the general rule is that exceptions in a statute are to be narrowly construed. [Citations.]” (*Rodriguez*, 17 Cal.5th 189, 199 [internal quotation marks omitted].) So far this only precludes applying *Jensen* to include as a “new vehicle” a used vehicle with pre-existing warranties. But what follows is important to the question at hand, because the *Rodriguez* court took a narrower definition of what was an “other motor vehicle sold with a manufacturer’s new car warranty” as that language is used in section 1793.22: “By specifically mentioning dealer-owned vehicles and demonstrators, the Legislature highlighted vehicles for which a manufacturer’s new car warranty arises upon sale to a retail buyer. Thus, the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ is most naturally understood to mean other vehicles for which such a warranty is issued with the sale. [Citation.] *The phrase serves as ‘a catchall to ensure that manufacturers cannot evade liability under the Act by claiming a vehicle doesn't qualify as new because the dealership hadn’t actually used it as a* *demonstrator.'* [Citation.] For example, it would cover a car owned by a manufacturer or distributor for marketing purposes." (*Rodriguez*, 17 Cal.5th 189, 199–200 [emphasis added].)

The *Rodriguez* case based its ruling on the important distinction the Legislature has drawn between new and used products before concluding that "the phrase 'other motor vehicle sold with a manufacturer's new car warranty' … means a vehicle for which a manufacturer's new car warranty is issued with the sale." (*Rodriguez*, 17 Cal.5th 189, 206.) This sentence alone does not actually make clear whether the "new car warranty" means "new warranty for a car" or "warranty for new car." But it needs to be read in the context in which it arises, and in particular the discussion in *Rodriguez* about the distinction between new and used products in the SBA and the legislative purpose in distinguishing between demonstrator and dealer owned cars and other used cars. *Jensen* had concluded that a used car with an existing new car warranty was a "new vehicle under the Act", and *Kiluk* had questioned that. The issue is the interpretation of the definition in section 1793.22(e)(2), and the term being defined there is "new motor vehicle", not "new motor vehicle warranty." The *Rodriguez* court resolved the question of whether *Jensen* was correct by focusing on the distinctions between new cars and used cars and interpreting the "other motor vehicle sold with a manufacturer's new car warranty" language not in the context of whether the warranty was new but in what makes the vehicles distinctive and new-car like.

In so doing the *Rodriguez* court rejected the *Jensen*'s court reading that "other motor vehicle" was a separate category from "demonstrator." That is, *Jensen* broke down the relevant sentence as:

"New motor vehicle" includes:

1. the chassis,
2. chassis cab,
3. and that portion of a motor home devoted to its propulsion, but does not include any portion designed, used, or maintained primarily for human habitation,
4. a dealer-owned vehicle and
5. a "demonstrator" or
6. other motor vehicle sold with a manufacturer's new car warranty but does not include a motorcycle or a motor vehicle which is not registered under the Vehicle Code because it is to be operated or used exclusively off the highways…

The alternate reading, which the *Jensen* court had acknowledged was "superficially plausible" under "the peculiar grammatical structure of this section" (*Jensen*, 35 Cal.App.4th 112, 123) would be:

"New motor vehicle" includes:

1. the chassis,
2. chassis cab,

3. and that portion of a motor home devoted to its propulsion, but does not include any portion designed, used, or maintained primarily for human habitation,
4. a dealer-owned vehicle and
5. a “demonstrator” or other motor vehicle sold with a manufacturer’s new car warranty but does not include a motorcycle or a motor vehicle which is not registered under the Vehicle Code because it is to be operated or used exclusively off the highways…

This reading is not as peculiar as *Jensen* would have it. Actually, it is *Jensen*’s interpretation that is grammatically peculiar and the contrary interpretation is more consistent with the grammar and punctuation of the statute. There is an “and” between “dealer-owned vehicle” and “a ‘demonstrator’”. The word “and” usually connects previous items in a list to the *last* item in the list, while the *Jensen* court’s reading would have the word “and” after the fourth item in the list, connecting them to the fifth and sixth items in the list; the alternate reading that *Jensen* rejected puts the word “and” where it belongs, after the first four items and before the fifth and final item in the list. The commas under the anti-*Jensen* interpretation are also correct if one does not use the Oxford comma, while the *Jensen* interpretation would properly require a comma after “a dealer-owned vehicle”. The “and” between “chassis cab” and “that portion of a motor home devoted to its propulsion” is awkward under either reading.

Rodriguez held that the Legislature did not intend to create a broad new category of all used motor vehicles that still had an existing warranty but instead interpreted the “other motor vehicle sold” language as being other vehicles sufficiently like the “demonstrator” category of vehicles to be considered in the same category. *Rodriguez* specifically provided an example of what such an “other motor vehicle” might be: a “car owned by a manufacturer or distributor for marketing purposes”—that is, a car that is similar to a demonstrator in that it remained in the possession of the distributor and was put to some use by the distributor but was not technically a demonstrator due to the type of use.

In the present case, Plaintiff purchased a previously owned 2019 Escape. (UF no. 1.) She admitted the Vehicle was used and testified that the Dealer described its warranty as a used-car warranty. (UF no. 3.) No evidence identifies the Vehicle as a demonstrator, a dealer-owned vehicle sold to its first retail buyer, or another new-car-like vehicle covered by section 1793.22(e). Further, no evidence establishes that a manufacturer’s new car warranty was issued with the sale.

Plaintiff argues that the relevant issue here is “what warranty was issued [or] adopted in connection with this particular certified pre-owned sale. That argument is not frivolous. *Rodriguez* observed that the used-product liability generally extends to a distributor or retail seller rather than the original manufacturer, “at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (*Rodriguez v. FCA US, LLC*, *supra*, 17 Cal.5th at 202.) But Plaintiff’s evidence does not identify the operative CPO warranty terms. Neither does it establish that Defendant issued a manufacturer’s new car warranty with the sale. Evidence that *some* warranty coverage existed is not evidence that a "manufacturer's new car warranty" within §1793.22 was issued with the CPO sale.

This resolves subdivision (d)(2), but the 1st cause of action invokes section 1793.2(d) in general. Subdivision (d)(1) is not limited to new motor vehicles. It applies to all consumer goods for which a warranty is issued—toaster ovens, power tools, socks, and other goods, including cars.

There are two important distinctions between subdivision (d)(1) and subdivision (d)(2): in the remedy provided and in the scope of their applicability. For remedies:

- Under subdivision (d)(1), a buyer of defective consumer goods gets either replacement or reimbursement of the purchase price minus a usage credit, at the manufacturer's option and may be able to recover incidental or consequential damages through section 1794(b) and the UCC.
- Under subdivision (d)(2), (i) the buyer chooses between replacement and restitution; (ii) any replacement vehicle must be substantially identical and accompanied by full new-car warranties; (iii) restitution includes the amount paid to date with finance charges (plus any amount still owed), transportation and manufacturer-installed options, and taxes / license / registration / other official fees; (iv) reasonable repair, towing, and rental car costs come in as incidental damages; and (v) the use offset is fixed by a statutory formula

For applicability, subdivision (d)(2) applies to new motor vehicles while subdivision (d)(1) applies to "consumer goods." Civil Code §1791(a) defines: "'Consumer goods' means any new product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes, except for clothing and consumables. 'Consumer goods' shall include new and used assistive devices sold at retail."

A used car is thus not inherently a consumer good. However, the Act contains additional provisions that can extend liability for a used consumer good. First, Civil Code §1795.5 provides that "the obligation of a distributor or retail seller of used consumer goods in a sale in which an express warranty is given shall be the same as that imposed on manufacturers"; it is "the obligation of the distributor or retail seller making express warranties with respect to used consumer goods (and not the original manufacturer, distributor, or retail seller making express warranties with respect to such goods when new) to maintain sufficient service and repair facilities within this state to carry out the terms of such express warranties." (Civ. Code §1795.5(a).)

A "distributor" is "any individual, partnership, corporation, association, or other legal relationship that stands between the manufacturer and the retail seller in purchases, consignments, or contracts for sale of consumer goods." (Civ. Code §1791(e).) Defendant is thus not a "distributor"—it does not stand in between itself and the seller. And so Defendant is not liable under section 1793.2(d)(1) as a manufacturer of a *used* good.

Kiluk, however, provides an alternate route to liability under section 1793.2(d)(1). Recognizing that "[t]he Song-Beverly Act provides similar remedies in the context of the sale of used goods, except that the manufacturer is generally off the hook" (*Kiluk*, 43 Cal.App.5th 334, 339), the court found the manufacturer there was also a retail seller because it "partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff. By partnering with the dealership, [the manufacturer] stepped into the role of a retailer and was subject to the obligations of a retailer under section 1795.5." (*Kiluk*, 43 Cal.App.5th 334, 340.)

The operative complaint does not plead that Defendant Ford *partnered with* Palm Springs Motors in selling this used Vehicle or thereby became its retail seller. It alleges that Defendant Ford "manufactured and/or distributed" the Vehicle and issued a warranty. (Compl., ¶¶ 7-8.) Even though paragraph 4 alleges generally that Defendant Ford sells vehicles in California, it does not allege that Defendant sold this Vehicle or played the substantial role in this particular *used* sale, as required by *Kiluk*.

Another theory also not presented in the pleadings, and outside the scope of the Song-Beverly Act, might be breach of original warranty under the UCC, a theory that the *Rodriguez* court expressly acknowledged was also available. (*Rodriguez*, 17 Cal.5th 189, 206 [citing the lower court for the proposition that "'the beneficiary of a transferrable express warranty can sue a manufacturer for breach of an express warranty to repair defects under the California Uniform Commercial Code'"].) But the theory of liability actually pled in the first cause of action is the liability of the manufacturer of the product issuing a warranty for a vehicle that was sold by distributor, and since that good was a used vehicle neither section 1793.2(d)(1) nor 1793.2(d)(2) provide relief against the manufacturer. **Accordingly, summary adjudication of the first cause of action is granted.**

Second Cause of Action (Civ. Code §1793.2(b)): In the 2nd cause of action plaintiffs allege that Defendant's representatives failed to commence repairs within a reasonable time. Civil Code §1793.2(b) states: "Where those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay." As per the above discussion, liability under subdivision (b) requires the product to be a "consumer good", which the vehicle is not under section 1791.

As to the used vehicle issue, section 1793.2 imposes obligations on manufacturers of "consumer goods," while section 1795.5 transfers comparable obligations for used goods to the distributor or retail seller that makes an express warranty in connection with the sale of used goods. Although the complaint alleges that Defendant "manufactured and/or distributed" the Vehicle (Compl., ¶ 7), it does not allege facts showing that Defendant acted as its retail seller, or issued an express warranty as part of that transaction. Nor has Plaintiff submitted evidence establishing Defendant's role as the statutory distributor or retail seller in this sale. **Accordingly, summary adjudication of the 2nd cause of action is granted under Issue No. 2.**

Issue no. 5 does not independently dispose of the entire cause of action. Defendants establish that the identified repairs lasted 1 day (8/12/22), another day (10/21/23), and another 22 days. (UF no. 15.) Plaintiff does not establish that a single repair exceeded 30 days. But paragraph 34 independently alleges that Defendant failed to "commence the service or repairs within a reasonable time." Issue no. 5 (as stated in the notice) addresses only whether a repair took longer than 30 days. It does not address or completely dispose of the reasonable commencement theory. The reply's assertion that there is no evidence of delayed commencement does not cure the problem. Accordingly, Issue no. 5 is denied as an independent request for summary adjudication, although the 2nd cause of action should be adjudicated for Defendant under Issue no. 2.

Third Cause of Action (Civ. Code §1793.2(a)(3)): Subdivision (a)(3) requires the manufacturer of consumer goods to "[m]ake available to authorized service and repair facilities sufficient literature and replacement parts to effect repairs during the express warranty period." But since subdivision (a) applies to manufacturers of consumer goods for which the manufacturer has made an express warranty, and this is not a consumer good, this cause of action is unsupported for the same reason as the previous two. **Summary adjudication of the 3rd cause of action is therefore granted under Issues nos. 3 and 6.**

Fourth Cause of Action (Breach of implied warranty of merchantability): In 4th fourth cause of action, plaintiff alleges that Defendant breached an implied warranty of merchantability accompanying the Vehicle's sale. But §1795.5 assigns implied warranty obligations in a used goods sale to the distributor/retail seller of the used goods. The original manufacturer is generally *not* liable unless it also assumed the role of distributor/seller in the transaction.

Here, the complaint does not allege that Defendant sold this Vehicle or partnered with Palm Springs Motors so as to become a retail seller under *Kiluk*. And beyond that, plaintiff has presented no evidence that Defendant was a seller of the vehicle in the sense that *Kiluk* described it. **Summary adjudication is granted under Issue no. 4.**

The statute of limitations defense also supplies an independent ground for summary adjudication. Historically, the Song-Beverly Act ("SBA") contained no express statute of limitations. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305.) As such, an action for breach of warranty under the SBA has been held to be governed by the Uniform Commercial Code 2725, which governs the statute of limitations for warranties. (*Id.* at 1306; *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 215 [The California Uniform Commercial Code section 2725 'controls rather than the general provision of Code of Civil Procedure section 338, subdivision (a) for liabilities created by statute"].) The statute of limitation is subject to tolling. (*See* Cal. U. Com. Code, § 2725; see *Krieger, supra,* 234 Cal.App.3d at 214, fn. 5.)

"Because an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that 'explicitly extends to future performance of the goods.'" (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 134.) Thus, the statute of limitations for a breach of implied warranty is four years from date of delivery. (Cal. U. Com. Code, § 2725; see also *Cardinal Health 301, Inc., supra,* 169 Cal.App.4th at 129 ["[U]nder section 2725, the general limitations rule for a breach of warranty cause of action is four years from the date the goods are delivered (regardless of the date the buyer discovers the breach)…"].)

However, the SBA was revised after *Krieger, Mexia* and *Cardinal Health.* The revised SBA provides that notwithstanding section 871.20, subdivision (a), discussed above, "[a]n action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle." (Code Civ. Proc., § 871.21(b).)

Section 871.20 applies to "an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable *express* warranty." (Code Civ. Proc., § 871.20(a), emphasis added.)

Here, Plaintiffs bring this *implied* warranty claim. Thus, the 4th cause of action does not fall within the scope of §871.20 and is not subject to the new statutory scheme. The governing statute of limitations remains the 4-year period from the date of delivery under Cal. U. Com. Code § 2725. Here, the complaint alleges a 3/23/20 transaction date (Compl., ¶ 7), but the sales contract identifies a "vehicle delivery date" of 2/14/20 (Ross Decl., ¶ 3, Ex. 2.) Plaintiff's 5/11/26 deposition also identifies a purchase date of 2/14/20. (*Id.*, ¶ 8, Ex. 7.) Either way, the ordinary 4-year period would have expired when Plaintiff filed suit on 8/30/24.

The complaint lists equitable tolling, delayed discovery, fraudulent concealment, equitable estoppel, the repair rule, and class action tolling. (Compl., ¶ 24.) However, the record supplies no facts to support those doctrines. **Issue no. 7 is granted.**

Issue no. 8 provides an independent basis as well. For a *used* vehicle, any implied warranty could not exceed 3 months. (Civ. Code, § 1795.5(c).) Plaintiff concedes that "no documented repair occurred during the first three months," and her deposition and discovery responses identify no repair before 8/12/22. (UF nos. 4-6; Plaintiff's Responses to UF nos. 4-6.)

Although the lack of a repair presentation is not proof that no latent defect existed, there is no evidence in the records that a defect existing at the delivery, which rendered the Vehicle unfit for ordinary use during the 3-month period, the allegations of diminished value and “one or more latent defect(s)” do not constitute evidence on summary adjudication. (Compl., ¶¶ 13-14, 42, 44.) Nor does Plaintiff identify evidence of diminution in value at the time of sale. (UF nos. 7-8.) **Accordingly, summary adjudication is granted under Issue no. 8.**

Fifth Cause of Action (negligent repair): In the 5th cause of action, Plaintiff alleges negligent repair. Negligent repair is a form of negligence. A negligence claim requires a legal duty of care, breach of that duty, causation, and damages. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Defendants argue that this cause of action fails because it is barred by the economic loss rule. Under the economic loss rule, generally “there is no recovery in tort for negligently inflicted “purely economic losses,” meaning financial harm unaccompanied by physical or property damage.” (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.)

Here, Plaintiff alleges that Palm Springs Ford failed to “properly store, prepare and repair” her Vehicle, owed a duty to use ordinary care and skill in performing those services, and negligently performed them. (Compl., ¶¶ 46-50.) The evidence does not establish, as a matter of law, that Palm Springs Ford owed no independent duty in performing repair services, or that the economic loss rule bars all damages flowing from negligent performance of those services. Plaintiff’s evidence is nevertheless weak. She supplies no expert opinion connecting Palm Springs Ford’s work. Issue no. 9, however, rests only on the economic loss rule. That defense does not completely dispose of the negligent repair claim as a matter of law on this record. **Summary adjudication is therefore denied as to the 5th cause of action.**

6.

CASE #	CASE NAME	HEARING NAME
CVRI2405849	POULTER VS CITY OF BANNING	MOTION FOR ORDER REQUIRING DEFENDANT TO FILE, UNREDACTED, EXHIBITS 5, 11, 14 AND 24, SUBMITTED BY DEFENDANT IN SUPPORT OF ITS MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE FOR SUMMARY ADJUDICATION

Tentative Ruling:

Moving party: Plaintiff Hannah Poulter
Responding party: Defendant City of Banning

This is an employment law case by Plaintiff Hannah Poulter (“Plaintiff”), a police officer, against her current employer, Defendant City of Banning (“City”).